

February 6, 2008



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

DOT-SP 13312
(THIRD REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
 - a. This special permit authorizes the transportation in commerce of certain DOT-3, 3A, and 3AA cylinders in chlorine and silane service with a pressure relief device that does not meet the requirements of § 173.301(f)(3). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.301(f)(3) and 180.205(c)(4) in that the pressure relief device setting is not as required.
5. BASIS: This special permit is based on the application of Air Products & Chemicals, Inc. dated November 18, 2005 submitted in accordance with § 107.109 and additional information dated February 1, 2008 from Linde North America, Inc. in accordance with § 107.107.

February 6, 20086. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chlorine	2.3	UN1017	N/A
Silane	2.1	UN2203	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are DOT Specification 3, 3A, and 3AA cylinders with a marked service pressure of 2265 or 2400 psig. Cylinders are equipped with CG-4 type pressure relief devices with a rating of 3360 psig.

b. TESTING - Cylinders must be periodically requalified using ultrasonic Examination (UE) in accordance with existing DOT special permits applicable to DOT Specification 3, 3A, and 3AA cylinders.

c. OPERATIONAL CONTROLS -

(1) Cylinders must be in dedicated chlorine or silane service.

(2) Cylinders in chlorine service must be filled to a maximum filling density of 125% (1.25 kg/l) and cylinders in silane service must be filled to a maximum filling density of 30.9% (0.309 kg/l) in accordance with § 173.304a.

(3) The pressure relief devices must be replaced with devices that meet the requirements of §§ 173.301(f)(3) and 180.205(c)(4) at the time the cylinder valves are removed in accordance with Air Products and Chemicals procedure "Valve Maintenance Schedule 000-PKG-221" on file with the Office of Hazardous Materials Special Permits and Approvals.

February 6, 2008

(4) Cylinders authorized under this special permit must be equipped with pressure relief devices that meet the requirements of §§ 173.301(f)(3) and 180.205(c)(4) no later than December 31, 2013.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each cylinder must be plainly and durably marked with "DOT-SP 13312" as specified in §172.301(c).

d. Packagings permanently marked 'DOT-E 13312', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 13312'.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: There are no modal specific requirements associated with this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

February 6, 2008

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MMTOUGHIRY/sln